

TOWN OF NORTH CASTLE

ZONING BOARD OF APPEALS

15 Bedford Road, Armonk, NY 10504

October 5, 2023 7:30 p.m.

ZONING BOARD MEMBERS:

Joseph Monticelli, Chairman
John L. Stipo
Robert Greer
Scott Stopnik
Ray Rodriguez

ALSO PRESENT:

Gerald Reilly, Esq. Town Counsel
Rob Melillo, Building Insp.
Lori J. Zawacki, Secretary

The meeting was called to order at 7:30 p.m. Chairman Monticelli asked for a roll call. All members present.

Approval of Minutes

Bob Greer made a motion to accept the minutes of September 7, 2023, and the motion was seconded by Scott Stopnik.

The Chairman called for the first application.

REMIX PROPERTIES, LLC, 12 Maple Avenue, Armonk, NY 10504 and known on the Town Tax Assessment Maps as Section 108.01, Block 6, Lot 26 and located in a CB-A2 Zoning District. In order to obtain a site plan approval, the applicant will need the following variance:

Pursuant to Section 355-57 of the Town Code, 48 off-street parking spaces are required where 15 are provided, needing a variance of 33 off-street parking spaces.

The Secretary announced that the applicant had requested an adjournment from the October 2023 meeting to the November 2, 2023 meeting.

The Chairman called for the next application and the Public Hearing was opened.

45 BEDFORD ROAD LLC, 45 Bedford Road, Armonk, NY 10504 and known on the Town Tax Assessment Maps as Section 108.03, block 1, Lot 65 and located in a R-MF-DA Zoning

District. In order to obtain a site plan approval, the applicant will need the following variances:

- 1. Pursuant to Section 355-21 of the Town Code the maximum building coverage permitted is 20% where 23.7 % is provided requiring a variance of 3.7%.***
- 2. Pursuant to Section 355-21.I B of the town Code the maximum floor area ration permitted is .4, where. 4.477 is provided requiring a variance of .077%.***

This application was represented by Anthony Veneziano, Esq.

Mr. Veneziano clarified along with Mr. Reilly that there was a clerical error on the application and the applicant is actually requesting a variance of .077%.

He went on to describe the size of the property and the fact that it is currently in front of the Planning Board and also received a Special Use Permit from the Town Board for 34 Town House Units. He explained the FAR variance is exclusively for including and encapsulating underground parking. This came from the Town Board as this area is located in the Historic District and they felt the underground parking would best serve this area. Also, the coverage variance came into play when the previous Boards who looked at this application felt the buildings should be shortened to conform more to this area as well. He read the referral from the Planning Board which was positive for both variances should the Zoning Board decide to grant.

Ron Hoina, the Architect for the project showed the drawings to the Board which showed how the buildings were shortened and spread as Mr. Veneziano had stated supporting the need for both variances.

Mr. Veneziano went through the 5 Factors for the granting of these variances and saw no issues with the factors in the granting of the variances and felt his client had satisfied all factors.

Chairman Monticelli asked the Board members if anyone from the Public had any questions.

Mr. Rodriguea asked how much did you actually lower the buildings.

Ron Hoina stated approximately three feet. To maintain the FAR the building then swelled.

The Public Hearing was closed.

Mr. Stipo stated he was ready to make a motion to grant both variances.

Mr. Reilly stated this is one of those rare applications where this is not self-created. The variances are not substantial and the alternative is to go back to and start all over again. This has been approved by the Town Board and currently a positive referral from the Planning Board.

Mr. Greer asked if this was approved by the Planning Board.

Mr. Reilly explained that Mr. Veneziano read the Planning Board minutes where this application is in front of them, and they are in favor of and have no objections to the granting of the two variances.

Mr. Veneziano then stated the steps they had taken to get where they are and that they are currently in front of the Planning Board for site plan and require these variances to move forward and other issues would be stormwater to be addressed by the Planning Board.

Mr. Stipo adopted Mr. Reilly's statements and made the motion to grant the variances.

The motion was 2nd by Scott Stopnik.

Roll call by the Secretary: John Stipo – Yes, Scott Stopnik, Yes, Bob Greer – Yes, Ray Rodriguez – Yes, and Joseph Monticelli – Yes. Both variances were granted by a unanimous vote of 5-0.

The Chairman called for the next application.

GREENWICH REALTY GROUP LLC, 23 Bedford Banksville Road, Bedford, NY 10506 and known on the Town Tax Assessment Maps as Section 102.04, Block 1, Lot 9, Section 102.04, Block 1, Lot 15, Section 102.04, Block 1, Lot 8 and Section 102.04, Block 1, Lot 16, and located in a GC-B and GB Zoning Districts. In order to obtain a site plan approval, the applicant will need the following variance:

Pursuant to Section 355-22 of the Town Code the proposed three story warehouse exceeds the maximum number of two stories permitted.

This application is represented by Anthony Veneziano, Esq. attorney for the applicants.

He stated that his client has obtained the property several years ago. He had a site plan with the existing conditions on the site along with the proposed new warehouse building. He explained how the older buildings were in a major state of disrepair. There was a fill operation in the rear, a prior nonconforming use and also old trucks stored and junk and very upset neighbors. We ended up evicting 5 tenants which took a bit of work and we also paid fines to the Town in excess of \$20,000 for violations. Since then my client who does lighting and some landscaping has been trying to make improvements. When we were talking to the Building Department there was an old building that was slated to be condemned. There are other multiple problems, the septic field is in the wetlands. The County came in to test and it functions and put a limit of 16 to 20 people on the site maximum.

The new building is to be self- storage and hardly needs anyone there to operate it. The septic defines what you can put here. This new building will improve the whole area. No school children, no traffic and no taxes. It is a win win.

Mr. Greer stated what do you mean there is no taxes?

Mr. Veneziano stated yes there will be additional taxes! Do you have any questions, or would you like our Architect or Engineer show you anything?

There was a short discussion between the Board Members, Mr. Veneziano and Mr. Reilly about self-storage, a permitted use in this zone and how it operates. If use ever changes they must return to the Planning Board. Also discussed were the other tenants currently located on the property and the steps needed by the applicant before other Boards to get approvals. The ZBA was only to determine whether a variance for the 3rd story was to be granted as the height requirement was in place along with the five factors.

The Chairman asked if the Board of anyone from the Public had any questions or comments.

There were none.

The Public Hearing was closed.

Mr. Stipo made a motion to grant the variance.

The motion was 2nd by Scott Stopnik.

Roll call by the Secretary: Ray Rodriguez – Yes, Scott Stopnik – Yes, Bob Greer – Yes, John Stipo – Yes and Joseph Monticelli, Yes. The variance was granted by a unanimous vote of 5-0.

Motion by John Stipo to close the meeting.

2nd by Bob Greer.

The meeting was closed.

Respectfully submitted,

Lori J. Zawacki